



File No.: EXP202311564

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 17, 2023, A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent).

The reasons for the complaint are as follows:

The claimant states that the respondent has installed surveillance cameras in common areas of the residence of both parties, without the authorization of the other residents and without having signposted the cameras with the required informative signs of the monitored area.

Images of the camera locations are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding of the complaint, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), at the location established in the complaint, was not collected by the responsible party.

A first attempt to send the forwarding letter addressed to the address indicated by the claimant was made through the Postal Service, which made two attempts on September 14 and 15, 2023, resulting in "Absent." It was "Returned to Origin due to Excess (Not collected at the office)" on September 26, 2023, according to the delivery impossibility certification in the file.

The second attempt to forward, to the address established in the complaint, was made on October 24 and 26, 2023, resulting in "Absent." It was "Returned to Origin due to Excess (Not collected at the office)" on November 3, 2023, according to the delivery impossibility certification in the file.

On September 28, 2023, a third attempt to forward was made to the address established in the municipal register, which was delivered to the respondent on November 14, 2023.

THIRD: On October 17, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On December 20, 2023, a responsible declaration was submitted indicating:

"Therefore, I declare, under my responsibility, that the indicated cameras do not allow for the viewing or recording of images and I commit to not making future use of these that would allow for the processing of personal data."

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

The AEPD is competent to perform the functions assigned to the control authorities in Article 57 of the GDPR, including enforcing the Regulation, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for these.

The internal legal system, in Article 65.4 of the LOPDGDD, has provided a mechanism prior to the admission for processing of complaints filed with the AEPD, which consists of forwarding them to the data protection officers designated by the controllers or processors, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not designated them, so that they proceed to analyze such complaints and respond within one month. Furthermore, it provides that if, as a result of these referral actions, the controller or processor demonstrates having adopted measures to comply with the applicable regulations, the AEPD may inadmit the complaint for processing.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/4

On the other hand, section 6 of the aforementioned article 65 of the LOPDGDD allows for the resolution of the complaint's filing after its admission for processing under the following terms:

“After admission for processing, if the data controller or processor demonstrates that they have adopted measures to comply with the applicable regulations, the Spanish Agency for Data Protection may resolve the filing of the complaint when specific circumstances advise the adoption of other more moderate solutions or alternatives to corrective action, provided that no prior investigative actions or any of the procedures regulated by this organic law have been initiated.”

III

Conclusion

In the present case, the complaint was admitted for processing on 17/10/2023, three days after it was received by this AEPD.

However, on 20/12/2023, in response to the transfer procedure noted in Fact Two of this resolution, a written declaration of responsibility was received from the party being complained against, in which it states:

“Therefore, I declare, under my responsibility, that the indicated cameras do not allow for the viewing or recording of images and I commit to not making future use of these that would allow for the processing of personal data.”

Once the actions taken have been analyzed and the reasons presented by the party being complained against have been considered, it is understood that they have adopted measures to comply with the applicable regulations, and it is not necessary to urge the adoption of additional measures as the issues raised in the complaint have been resolved, thus proceeding to file it in accordance with the provisions of article 65.6 of the LOPDGDD.

All of this is without prejudice to any possible actions regarding the data processing referred to in the complaint that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, by the Presidency of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO PROCEED WITH THE FILING of the present actions.

SECOND: TO NOTIFY this resolution to B.B.B. and to the complainant.

Against this resolution, which concludes the administrative process as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of arts. 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may, optionally, file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative

Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

940-301023

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with art. 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/4